

DT/113/13

11.01.2013

Shri Suman Kumar,
Asstt. General Manager,
Securities & Exchange Board of India,
SEBI Bhavan, C-4A, G-Block,
Bandra Kurla Complex,
MUMBAI 400 051

Dear Sir,

**Re : Review of Regulatory Compliance, Periodic
Reporting & Contents of Trust Deed
-- Half yearly report for half year ending 30.09.2012**

We refer to your circular No. CIR/MIRSD/25/2011 dated 19.01.2011 on the captioned subject.

Kindly refer to our email dt.02.01.2013 informing that the meeting of the Board of Directors is scheduled on 10.01.2012 and seeking time for submission of the captioned statement by 12th Jan. 2012. The meeting was held today.

We now enclose the statement in the prescribed format for the half year ending on 30.09.2012 for your perusal, alongwith the observations of the Board on the said periodical reporting for your perusal.

Thanking you,

Yours faithfully,



Compliance Officer

Encl: as above



delivered on 14/1/2013

REPORT OF DEBENTURE TRUSTEES FOR THE HALF YEAR ENDED 30th SEPTEMBER, 2012

NAME - GDA TRUSTEESHIP LTD.

REGISTRATION NO. IND0000000034

DATE OF REGISTRATION - May 1998

SECTION I : ACTIVITIES

A. Details of Debenture Issues (Public (P) / Rights (R) / Privately Placed Listed (PPL) / Privately Placed Unlisted (PPUL)

Type	No. of debenture issues accepted during the half year ended 30th Sept., 2012			Cumulative No. of debenture issues handled up to the half year ended 30th Sept., 2012	Size (Rs. in Crores) of debenture issues accepted during the half year ended 30th			Cumulative Size (Rs. in Crores) of debenture issues handled up to the half year ended 30th Sept., 2012
	Secured	Unsecured	Total		Secured	Unsecured	Total	
Public	0	0	0	2	0	0	0	4268
Rights	0	0	0	0	0		0	0
Privately Placed Listed	18	5	23	120	1929	12655	14584	31982
Privately Placed Unlisted	1	0	1	10	10	0	10	5136
Total	19	5	24	132	1939	12655	14594	41386

Note: 1. The size of Public Issue reported as on 31.03.2012 was taken based on 'Issue Size'. However, now it is rectified based on actual subscription.

2 One issue of 'Unlisted Secured' accepted during half year, while one issue was redeemed during this half year.

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B. Activities other than debenture trusteeship

Activity Type	Description of the activity	Number of clients
Services relating to securitisation transactions	Shriram City Union Finance Ltd. securitised its loan assets to Dhanalaxmi Bank Ltd. and we are acting 'Purchasers Representative'	1
DSC - Issue of Digital Signature Certificate	Under MCA-21 Programme, initiated by Govt. of India, digital signature is required for filing returns electronically. Acting as 'Registration Authority' on behalf of Tata Consultancy Ltd., to issue 'Digital Signatures'	Average 40-50 clients per month
Giving back-office functioning of employees benefit trust funds	Back-office functioning of provident fund trusts of exempted companies.	13
Security Trusteeship in respect of consortium finance by Banks and financial institutions	Acting as Security Trustee for and on behalf of lender Banks and financial institutions	1

Name of Compliance Officer

Shri Shekhar Belhekar




o/c

Name of the DT - GDA TRUSTEESHIP LTD.

Section II - REDRESSAL OF INVESTOR GRIEVANCES

For the Half Year ended 30th Sept., 2012

A. Status of Investor Grievances

	Name of the issuer (tranche wise)	Pending Complaints at the end of the previous half year	No. of Complaints received during the half year	No. of Complaints resolved during the half year	No. of Complaints pending at the end of the half year
1	Andhra Pradesh State Fin Corp.	Nil	Nil	Nil	Nil
2	Bajaj Auto Finance Ltd.	Nil	Nil	Nil	Nil
3	Bank of Maharashtra	Nil	Nil	Nil	Nil
4	Bharti Shipyard Ltd.	Nil	Nil	Nil	Nil
5	Dewan Hous. Fin. Ltd.	Nil	Nil	Nil	Nil
6	IndusInd Bank Ltd.	Nil	Nil	Nil	Nil
7	Kalyani Steels Ltd	Nil	Nil	Nil	Nil
8	Shriram Citi Union Fin. Ltd.	Nil	Nil	Nil	Nil
9	Power Finance Corporation LTD.	68	890	946	12

Note: Out of 12 complaints of Power Finance Corporation Ltd., 11 were relating to 'Non-receipt of securities' & one for 'Non-receipt of interest'. All the complaints of Power Finance Corporation Ltd. pending as on 30.09.2012 now stand resolved.

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B. Details of the complaints for more than 30 days

Name of the issuer	No. of Complaints pending for more than 30 days	Nature of Complaint(s)			Steps taken for redressal	Status of the complaint(if redressed, date of redressal)
		Delay in payment of interest	Delay in payment of redemption	Any other		
Nil	Nil	Nil	Nil	Nil	Nil	Nil

Name of Compliance Officer

Email ID

11.01.2013

Shri Shekhar Belhekar

dt@gdatrustee.com



(iii) Changes in Key Personnel during the half year ended 30.09.2012

Names of key personnel	Appointment / Cessation	Date of appointment / cessation	Qualification	Experience	Functional areas of work
Mrs. Prajakta A. Barve -- Compliance Officer	18.06.2012 (Cessation)	18.06.2012	M.A., LL.B.	1 Year	Compliance Officer
Mr. Shekhar Belhekar	18.06.2012 (Appointment)	18.06.2012	B.Sc., LL.B.	8 Years	Compliance Officer

E. Details of deficiencies and non-compliances:

_____ NIL _____

F Details of the review of the report by Board of Directores

Date of Board Review 11.01.2013
 Observation of the Board of Directors on:
 (i) the deficiencies and non compliances Observation as per Annexure -1
 (ii) corrective measures initiated

Certified that we have complied with SEBI(Debenture Trustee) Regulations, 1993, applicable provisions of SEBI (Issue and Listing of Debt Securities) Regulations, 2008, Circulars issued by SEBI and any other laws applicable from time to time except the deficiencies and non-compliances those specifically reported at Section IV (E)-above



Signature

Shri Shekhar Belhekar
 Compliance Officer
 Email ID : dt@gdatrustee.com
 11.01.2013

Name of the DT - GDA TRUSTEESHIP LTD.

Section III- DEFAULT DETAILS

Information regarding default by Issuer Companies in Public (P) / Rights (R) / Privately Placed Listed (PPL) Issues of Debentures up to the half year ended 30th Sept., 2012

Name of the Issuer	Secured / Unsecured	Type (P/R/PPL)	Issue size Rs. In crores	Type of Default*	Details of action taken
Bharti Shipyard Ltd.	Secured	PPL	90	Non-payment of Interest	As per the Corporate Debt Restructuring (CDR) approved by the lenders in June, 2012, including NCD-holders, the schedule of redemption of NCDs is revised.

* Type of Default 1. Non -payment of interest;
2. Non -payment of redemption;
3. Delay in payment of interest/redemption;
4. Any other (like non-creation of security)



Name of Compliance Officer Shri Shekhar Belhekar
Email ID dt@gdatrustee.com
11.01.2013

SECTION - IV - COMPLIANCE

Name of the DT - GDA TRUSTEESHIP LTD.

COMPLIANCE CERTIFICATE FOR THE HALF YEAR ENDED SEPTEMBER, 2012

A. No Conflict of interests with other activities

The activities other than debenture trusteeship performed by DT are not in conflict with DT activities and appropriate systems and policies have been put in place to protect the interests of debenture holders

B. Change in status or constitution

Reporting of 'changes in status or constitution' of DT (In terms of SEBI Circular No. CIR/MIRSD/10/2011 dated June 20, 2011

_____ NIL _____

C. Other Information

(i) Details of arrest / Conviction of key officials of DT
_____ NIL _____

(ii) Details of prosecution cases of criminal complaints filed by investores against the DT
_____ NIL _____

(iii) Details of any fraudulent activity by the employees associated with DT activities and action taken by the DT
_____ NIL _____

(iv) Details of conviction of any offence involving moral turpitude or any economic offence by employees of DT
_____ NIL _____

(v) Action taken by the DT on the above issues
_____ NA _____

D. Compliance with registration requirements

Certified that the requirements specified for SEBI registrations as DT are fulfilled, the details are as under:

- (i) Net worth (audited) as defined in the Regulations as on FY ended 31.03.2012 -Rs.388 Lakhs (as per the latest audited financials)
- (ii) Any change in infrastructure since the last report / registration / renewal



Observations of Board on "Statement of Activities of Debenture Trusteeship for the half year ending on 30.09.2012" to be submitted to SEBI :

The members of the Board of Directors perused the "Statement of Activities of Debenture Trusteeship for the half year ending on 30.09.2012" to be submitted to SEBI in compliance of circular No.CIR/MIRSD/25/2011 dt.19.12.2011 of SEBI and noticed that –

- (A) The company has accepted 24 issues of debentures amounting to Rs.14594 cr. during the half year ending on 31.03.2012. Out of the said issues, three issues amounting to Rs.776 cr. of Bharat Forge Ltd. are transferred from exiting Debenture Trustees to this company and the security in respect of these three issues was already created in favour of earlier trustees. It is observed that the necessary documents for transfer of trusteeship have been executed and formalities of registration of charges with RoC have been taken. As regards the other 21 issues it is observed that security has been created within the stipulated time and that no deficiency or non-compliance have been observed in respect of these issues.
- (B) In respect of investor grievances, no complaint is received by the company during the period under report. The issuer companies, except Power Finance Corporation Ltd.(PFC), have also informed that no complaints have been received by them, while PFC has confirmed that 12 complaints were pending with them as on 30.09.2012. It is informed by PFC that out of them, 11 were relating to non-receipt of securities and one relating to non-receipt of interest and all are now stand resolved. It is further noted that none of the complaints were pending for more than 30 days.

In respect of default by the issuer company, there is only one company viz. Bharati Shipyards Ltd. which has committed default in payment of interest due for the last two quarters. There are only two investors (LIC & GIC) and that as per CDR approved by lenders, the repayment has been restructured.

